SECTION 1 -- INCIDENT

Date / Time Reported: 05/03/2024 22:51 hrs
Date / Time Occurred: 05/03/2024 approx. 22:38 hrs
Location of Occurrence: Acme Logistics LLC warehouse, 4900 Holabird Avenue, Baltimore, MD 21224
Premises Type: Commercial / warehouse (second-floor operations office)
Offense(s): Burglary 4th Degree (CR 6-205); Assault 2nd Degree (CR 3-203); Theft (CR 7-104)
Reporting Officer: Ofc. Kevin Chen, #4471, Sector 2
Assisting Unit(s): Car 5E23; BCFD Medic 21
Case Status: Open -- referred to Southeastern District Detective Unit

SECTION 2 -- VICTIM(S)

V-1 Name: PRICE, DARNELL T.
Date of Birth: 07/19/1979 (44)
Sex / Race: M / B
SSN: 578-20-3391
Home Address: 617 Pelham Avenue, Baltimore, MD 21213
Phone: (443) 555-0186
Employer: Ironclad Security Services (contract security, site post #2)
Injury: Suspected fracture, left wrist; abrasions to forehead. Transported by Medic 21.
V-2 Name: Acme Logistics LLC (business), 2300 Smith Avenue, Baltimore, MD 21209
Business Phone: (410) 555-0120 -- EIN 52-1234567

SECTION 3 -- WITNESS(ES) / OTHER PERSONS

W-1 Name: MARSH, WILLIAM J. (on-call shift supervisor, Acme)
Contact: (410) 555-0164 (cell)
Role: Arrived on scene 23:20 hrs; identified missing records

SECTION 4 -- PROPERTY

Item	Description	Status	Value
1	Vendor binder, Patapsco Freight Services (2023-24)	Stolen	N/A
2	Vendor binder, misc. carriers A-M	Stolen	N/A
3	Dell Latitude laptop, asset tag ACM-11872	Stolen	$1,240.00
4	Filing cabinet, 4-drawer (lock forced)	Damaged	$310.00

SECTION 5 -- NARRATIVE (Reporting Officer)

On May 3, 2024 at approximately 22:51 hrs, R/O Ofc. K. Chen responded to the Acme Logistics warehouse at 4900 Holabird Avenue for a report of a burglary in progress with an injured security guard. Upon arrival R/O met the victim, Darnell Price, seated at the base of the interior stairwell holding his left arm. Mr. Price stated that he is a security officer for Ironclad Security Services and was conducting his 22:30 rounds when he heard metal scraping from the second-floor operations office, which is normally locked after 18:00.

Mr. Price stated he climbed the stairs and saw an unknown male pulling folders out of a filing cabinet. The male turned off the overhead light, rushed toward the door, and shoved Price with both hands. Price fell backward down approximately eight steps and struck his head and wrist. He stated the male ran down past him and out the rear dock door. Price stated that his duty weapon, a Smith & Wesson M&P 9 pistol, remained holstered throughout and that he did not draw it because "it happened in about two seconds."

Price described the suspect as a white male, 55 to 65 years old, approximately 5'10", heavy build, wearing a dark Orioles baseball cap, dark jacket, and work boots. He did not see the suspect's face clearly. Price stated he would not be able to make an identification but "the guy knew exactly where he was going." BCFD Medic 21 evaluated Mr. Price on scene and transported him for treatment of a suspected fractured wrist.

R/O observed that the rear dock door (Door D-4) was closed but unlocked. The operations office door showed no signs of force. The top two drawers of a four-drawer filing cabinet had been pried open; a flat-head screwdriver was recovered from the floor and submitted to ECU as Item 5 for latent prints. At 23:20 hrs the on-call shift supervisor, William Marsh, arrived and reviewed the office. Mr. Marsh stated that two vendor binders were missing, including the binder for Patapsco Freight Services, a vendor he had recently reported to Acme compliance for suspected billing irregularities. Marsh stated that a company laptop was also missing; he estimated its replacement price at about $1,240.

Mr. Marsh advised that door access is controlled by employee badges and that the access-control vendor will be able to produce a log for the evening. Marsh stated, "I will pull whatever you need." R/O requested that the log be preserved. Scene was processed by ECU Technician #8812. No further information at this time.

Reporting Officer: Ofc. Kevin Chen #4471 Date: 05/04/2024 01:12 hrs

SECTION 6 -- SUSPECT

S-1 Name:	SMITH, JOHN ANDREW
Date of Birth:	03/14/1963 (61)
Sex / Race / Ht / Wt:	M / W / 5'10" / 230 lbs
SSN:	212 48 6789
Home Address:	1418 Elm Street, Baltimore, MD 21218
Phone:	(410) 555-0173
Employer:	Acme Logistics LLC -- Operations Manager (badge No. A-20417)
Vehicle:	2019 Ford F-150, silver, MD tag 4CX-7219, registered to John A. Smith and Mary E. Smith

SECTION 7 -- SUPPLEMENT (Investigating Detective)

On May 4, 2024, this investigator, Det. Brian Kowalski, Southeastern District Detective Unit, was assigned this complaint. I reviewed the reporting officer's narrative and spoke by phone with the victim, Darnell Price, who confirmed his account. Mr. Price was treated and released with a splinted fracture of the left distal radius.

Badge log. On May 4, 2024, Acme security produced the door-access log for May 3, 2024. The log shows badge No. A-20417, assigned to John A. Smith, granted at Door D-4 (rear dock) at 22:37:52 hrs and at the operations office (Door O-2) at 22:38:41 hrs. No other badge was used at either door between 18:10 hrs and 23:19 hrs, when Marsh badged in. Acme confirmed that SMITH's approval authority had been suspended on May 1, 2024 pending an audit, but his badge remained active.

Neighbor canvass. On May 4, 2024 at 14:20 hrs, I interviewed May Chen, who resides at 1420 Elm Street, next door to the suspect's residence. (Ms. Chen is no relation to Ofc. Chen.) Chen stated that at about 22:05 hrs on May 3 she was putting out her trash and saw the silver pickup truck belonging to "Mr. Smith" back out of the 1418 Elm Street driveway. She stated the driver was wearing a baseball cap. She stated she heard the truck return "a little before midnight" and saw "Mr. Smith" walk from the truck into the side door. When asked which Mr. Smith she meant, Chen stated, "John, the father. Steve doesn't live there anymore." She acknowledged that it was dark and that she saw the driver only from behind. A written statement was obtained (see attached).

Bank records. Acme's internal audit identified fourteen ACH payments to Patapsco Freight Services deposited to Chesapeake Federal Bank account ending 5510, routing No. 052000113. On May 9, 2024 I interviewed teller Rosa Delgado at the bank's 3400 Eastern Avenue branch. Ms. Delgado stated that a regular customer she knew as "Mr. Smith" made cash withdrawals from the Patapsco account roughly every two weeks and once remarked that he was "saving for his granddaughter's school." Delgado selected SMITH's photograph from a six-person array (administered blind by Ofc. Chen) and stated she was "about ninety percent sure." A subpoena for account records was requested through the State's Attorney's Office.

Suspect interview. On May 6, 2024 at 10:05 hrs, John A. Smith appeared voluntarily at the Southeastern District, 5710 Eastern Avenue, Baltimore, MD 21224. He was advised of his rights, waived them in writing, and agreed to speak. SMITH denied entering the warehouse on May 3. He stated that at approximately 21:30 hrs his granddaughter, E.S. (age 7), who was staying with him and his wife, developed a high fever,

and that he drove her to Harbor Pediatric Urgent Care in his wife's gray Honda Accord, leaving his truck in the driveway. He stated they returned home after 23:30 hrs. SMITH stated that his son, Stephen M. Smith, was at the house that evening and "might have taken the truck to get Emmy's medicine." He stated his keys and badge lanyard hang on a hook by the kitchen door.

SMITH denied any knowledge of Patapsco Freight Services and stated, "Whatever account that is, I didn't open it." When shown the account-opening documents bearing his name, Social Security number ending 6789, and home address, SMITH stated, "That's my information, but that's not my signature," and ended the interview at 10:52 hrs.

Follow-up. I contacted Stephen M. Smith (DOB 08/22/1988) of 3306 Linden Court, Apt. 2B, Towson, MD 21204 by phone on May 7, 2024. Steve Smith confirmed he was at his parents' house on the evening of May 3 and stated he would give a full statement only with counsel present. Defense counsel later advised that Mr. Smith will be relocating overseas for work in June, and the parties agreed to preserve his testimony by deposition. I also spoke with Mary Smith, who confirmed that her husband took E.S. to urgent care in her car. Mrs. Smith stated she was asleep by 22:00 hrs and does not know who used the truck. Case remains open pending bank records and latent print results.

Investigating Detective: Det. Brian Kowalski #3196 Date: 05/10/2024

Approved: Southeastern District Detective Unit Supervisor -- 05/10/2024